

Restaurant Enrollment Agreement

Careem Legal Entity	Careem Deliveries FZ-LLC, 3901, Level 39, Shatha Tower, Dubai Internet City, Dubai, United Arab Emirates
Restaurant Legal Entity Name:	BFF MANAGEMENT L.L.C
Legal Address:	Sol Real Estate Development LLC - Business Bay - Kitchen shop number 3
Primary Contact Person:	Boutros Abou Rahal
Phone:	00971521025674, 00971568217070
Email:	boutros@vkusno.ae , accounts@vkusno.ae
Brand Name:	Vkusno Russian Kitchen
Agreement Start Date:	The date that Careem notifies Restaurant of log-in details to access the Restaurant Application to use the Careem Platform. Such date shall be no later than 21 calendar days following the signature of the Enrollment Agreement.
Territory	United Arab Emirates

1. Charges:

Commission	Tablet fee (AED)	Onboarding fees per brand (AED)	Processing fee
25%	660	1000	2%

Careem Platform Fee:
Careem Delivery option (ie: delivery arranged by Careem): For all orders delivered by Captains, the Restaurant undertakes to pay to Careem a fee of **25%** (plus any applicable taxes (e.g. VAT) of the total value of each Order net of Restaurant promotions, discounts and government taxes.

Processing Fee: For all payments (using an Electronic Payment Mechanism (as defined in the Terms and Conditions as well as cash orders), the Restaurant shall pay to Careem a processing fee of 2% (plus any applicable taxes e.g. VAT) of the total value of each Order net of Restaurant promotions and discounts.

Note: Tablet fees and onboarding fees are a one-time fee to be paid upon signing the contract and are deductible from payout by Careem before the settlement of the due amounts to the restaurant.

Restaurant Payments & VAT policy: All payments will be settled electronically on a weekly basis (or as otherwise agreed between the Restaurant and Careem in writing) and credited directly to the account details which have been provided by the Restaurant to Careem after deducting the Net Order Value and the applicable VAT on the Charges payable by the restaurant to Careem and any other charges as laid out in the Terms and Conditions. The Restaurant will collect, pay and report any applicable taxes on the Goods and Self Delivery, as applicable, to the appropriate authorities and provide Customers with compliant Tax Invoices for the Goods and Self Delivery where required under the laws of the United Arab Emirates.

2. Pricing:

Restaurant will not at any time offer, by way of any medium, a price for any food and beverage item (including offers and discounts but excluding 'eat-in' menu pricing) which is lower than the then-current price of the applicable item set out in the Menu and available through the Careem Platform. For the avoidance of doubt, the Restaurant shall be responsible for determining the type of Added Value offered to Careem Users, acting at all times reasonably and in good faith.

3. Stores:

Unless otherwise separately agreed in writing the Restaurant and Careem hereby agree that the terms set out in this Agreement shall apply to all store addresses of the Restaurant with respect to the relevant Brand in the Territory.

4. **Processing of Personal Data:** To carry out obligations under the Agreement, the Restaurant will Process Personal Data of Careem Users. Careem, as the Controller, will transfer Personal Data to the Restaurant, who will act as Processor. The following are the categories of data that will be transferred: (a) Careem User Name; (b) list of addresses (and associated description) saved by Careem User on his/her Careem profile; and (c) mobile phone number (where necessary).

The Personal Data must only be Processed by the Restaurant to: (i) process and fulfill an Order. Any other use of Personal Data is strictly prohibited. This prohibition includes, but is not limited to, any Processing of Personal Data: (i) for marketing purposes; (ii) market research or evaluation; or (iii) internal processing for business purposes. Personal Data may only be retained for one (1) hour after completion of an Order. The Restaurant will securely delete the data, providing written confirmation of the same on request.

5. **The Agreement:** The Restaurant hereby confirms that it has read and understood the terms and conditions agreement offered by Careem which are found at <https://blog.careem.com/en/careem-restaurant-delivery-plan-model/> (the “Terms and Conditions”) and by signing below, the Restaurant agrees to be bound by and comply with all the provisions of the Terms and Conditions and this Enrollment Agreement. Any capitalized term used but not defined herein shall have the meaning attributed to it in the Terms and Conditions. In the event of any conflict between the terms of this Enrollment Agreement and the Terms and Conditions, the terms of this Enrollment Agreement will prevail.

6. **Term:**
This Agreement shall be effective from the signing date and shall remain in full force and effect for a period of 1 year. The term of the Agreement shall automatically extend at the end of the initial term for a series of similar terms. Unless either Party gives written notice of non-renewal to the other Party, not later than thirty (30) days before the end of the initial term (or subsequent term).

7. **Changes to the Terms and Conditions:** Any term of this Enrollment Agreement may be amended from time to time with the written approval (which may include email) of the Restaurant and Careem. For the avoidance of doubt, Careem may amend any term of the Terms and Conditions at any time in accordance with the amendment provisions of the Terms and Conditions.

8. **Electronic Signature:** Original signatures transmitted and received via electronic transmission of a scanned document (via secure email or a service such as provided by DocuSign) are true and valid signatures for all purposes hereunder and shall bind the parties to the same extent as that of an original signature.

9. **Governing Law:** The Agreement shall be governed by, and construed in accordance with, the laws of the United Arab Emirates.

By signing below, the Restaurant confirms that it has: (i) access to, and has read and understood, the Terms and Conditions; and (ii) agreed to be bound by and comply with all the provisions of the Terms and Conditions and the terms included in this Enrollment Agreement. At any time, the Restaurant may request from Careem a paper copy of the Terms and Conditions. If there is any conflict between this Enrollment Agreement and the Terms and Conditions, then the terms of this Enrollment Agreement shall prevail.

SIGNED FOR AND ON BEHALF OF THE RESTAURANT

Signature: _____

Authorized Signatory Name: _____

Title: _____

Date: _____

Documents to be provided by the Merchant:

Trade license: Yes ☐

VAT registration certificate: Yes ☐

Signed and completed Enrollment Form: Yes ☐

Updated Menu with preparation time by category and item prices inclusive of taxes: Yes ☐